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File No.: EXP202304061

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST:

A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on February 5, 2023. The complaint is directed against AYUNTAMIENTO DE BENAVIDES with NIF P2401600H (hereinafter, the respondent or the City Council). The reasons for the complaint are as follows:

On 02/05/23, the claimant published on the notice board of the Electronic Headquarters of the City Council the Resolution of the Mayor approving the provisional list of admitted candidates to the selection process - File No. ***EXPEDIENTE.1, (...). This resolution included the full name, surname, and ID number (DNI) of the claimant, as well as the full name, surname, and ID number of another candidate.

On 02/06/23, the claimant submitted a new document to the Spanish Agency for Data Protection (AEPD) to inform that the resolution published on 02/05/23 had been withdrawn. However, it indicates that the respondent had uploaded a new file containing the provisional lists of admitted and excluded candidates for all ongoing stabilization processes, and again published their full ID number (associated with one of the processes in which they are registered).

Along with the complaint, the claimant provided:

- Resolution of the Mayor dated February 5, 2023, approving the provisional list of admitted candidates to the selection process - File No. ***EXPEDIENTE.1, in which the full ID numbers of the candidates were included without censorship.
- Resolution of the Municipal Mayor dated 02.06.2023, approving provisionally the provisional lists of admitted and excluded candidates in the processes of consolidation of temporary employment of the City Council of Benavides (León), in which the full ID numbers of several candidates were again published uncensored.
- Two screenshots of the Notice Board of the Electronic Headquarters of the City Council dated February 5 and 6, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 29/03/2023 as recorded in the acknowledgment of receipt in the file.

On 03/04/2023, a response was received by this Agency, registered on 04/04/2023. The City Council submitted a report dated April 3, 2023, prepared by ***POSITION.1 of the City Council, highlighting that:

In 2020, the Excm. Diputación de León forwarded to the City Council of Benavides the resolution appointing the person designated as Data Protection Officer (hereinafter, DPD). However, in November 2022, the provincial body communicated to the City Council the resignation of the holder of that position. Since then, the City Council of Benavides has been without the figure of the DPD, despite being responsible for and in charge of processing personal data.

In a small municipality like Benavides, the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD) are difficult to fit, or, in some cases, nearly impossible to comply with.

***POSITION.1 of the City Council has to attend to numerous tasks of very diverse nature, in addition to the responsibility for data protection processing, all due to the lack of technical and personnel resources.

Regarding the file subject to the complaint, the following is highlighted:

The City Council of Benavides has been subjected to the employment processes established in Law 20/2021, of December 28, on urgent measures to reduce temporary employment in the public sector (16 stabilization processes for very diverse profiles).

These processes require numerous procedures (preparation and publication of general and specific bases, preparation and publication of provisional lists of admitted candidates, as well as definitive lists, etc.) that must be carried out by ***POSITION.1 of the City Council.

It admits that the resolution of the Mayor approving the provisional list of admitted and excluded candidates in all stabilization processes was published without observing the LOPDGDD, as it included the full national identity document of the candidates for the tests. However, it highlights that, once the irregularity was detected, it was withdrawn within less than 24 hours.

Regarding the personal data breach:

- It emphasizes that it has affected 2 individuals.
- The affected personal data would be the National Identity Document (DNI).

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- In relation to the causes that have made the personal data breach possible, it indicates that they have tried to lighten the 16 stabilization processes, as provided by Law 20/2021, joining this circumstance with the accumulation of other administrative tasks.

- It considers that the consequences for the affected individuals are minimal, if not nonexistent (the number of claims has been one), given the small number of people who accessed the document published in the few hours during which the resolution was enabled. Concluding that the impact of the publication, beyond the claimant, has been null.

- In relation to security measures, it highlights:

“6.- Security Measures for the processing of personal data adopted prior to the incident, as well as the supporting documentation of the Risk Analysis that has led to the implementation of such Security Measures and, if applicable, a copy of the Impact Assessments of the processing where the personal data security breach occurred. Always attempts are made to adopt appropriate measures for the processing of personal data, but we all make mistakes, (...).”

- It indicates that the personal data breach has not been communicated to the affected individuals or to the AEPD.

- In relation to the measures to be adopted, it emphasizes:

“10.- Measures that it plans to adopt to prevent a similar incident from occurring in the future. It has been proposed (...) to the Municipal Mayor's Office, to reinforce electronic security with more personnel. And this being aware of the problem of the scarcity of resources in Local Administration.”

THIRD: On May 5, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FOURTH: On January 16, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for:

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- The alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a), and qualified as very serious for the purposes of prescription in Article 72.1 a) of the LOPDGDD.

- The alleged infringement of Article 32 of the GDPR, classified in Article 83.4 a), and qualified as

serious for the purposes of prescription in Article 73 f) of the LOPDGDD.

- The alleged infringement of Article 37 of the GDPR, classified in Article 83.4 a), and qualified as serious for the purposes of prescription in Article 73 v) of the LOPDGDD.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the respondent submitted a written statement of allegations in which, in summary, it stated that:

In 2022, the Hon. Provincial Council of León communicated to the Benavides City Council the resignation of the person appointed as data protection delegate of that City Council.

Since that moment, the City Council has been without a data protection delegate, although it is responsible for or in charge of the processing.

The City Council, with a population of 2,400 people, has scarce material, technical, and human resources to be able to assume all the provisions of the LOPDGDD.

It enumerates the functions assumed by the person occupying the ***POSITION.2 of the City Council, to which the responsibility for the processing of personal data is added.

***POSITION.2 of the City Council subscribes to the report (...) of the Benavides City Council and highlights that as of the date of drafting the statement of allegations (January 30, 2024), the same situation described in it continues.

Regarding the measures to be adopted by the City Council to prevent a new personal data breach like the one examined in the future, it emphasizes that it will propose (...) to the Mayor's Office to request the Hon. Provincial Council of León to appoint a data protection delegate.

SIXTH: On March 13, 2024, a resolution proposal was formulated, proposing:

“FIRST: That the Director of the Spanish Agency for Data Protection declare that AYUNTAMIENTO DE BENAVIDES, with NIF P2401600H, has infringed the provisions of:

- Article 5.1.f) of the GDPR, classified in Article 83.5.a), and qualified as very serious for the purposes of prescription in Article 72.1 a) of the LOPDGDD.

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- Article 32 of the GDPR, classified under Article 83.4 a), and deemed serious for the purposes of prescription under Article 73 f) of the LOPDGDD.

- Article 37 of the GDPR, classified under Article 83.4 a), and deemed serious for the purposes of prescription under Article 73 v) of the LOPDGDD.

SECOND: That the Director of the Spanish Agency for Data Protection orders AYUNTAMIENTO DE BENAVIDES, with NIF P2401600H, to comply with the following measures within six months, pursuant to Article 58.2.d) of the GDPR:

1. Appointment of a Data Protection Officer and communication of such appointment to the AEPD.
2. Establish the necessary measures to ensure that the publication of personal data of candidates for public employment processes convened by said Ayuntamiento complies with the provisions of the seventh additional provision of the LOPDGDD.

SEVENTH: Once the aforementioned proposal for resolution has been notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the summoned party. In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The Ayuntamiento de Benavides published in the announcement board of its Electronic Headquarters the Resolution of the Mayor approving the provisional list of admitted candidates to the

selection process - Expte. No. ***EXPEDIENTE.1, in which the full National Identity Document of the candidates appeared along with their names and surnames.

The complainant has submitted along with their complaint said resolution, as well as a screenshot of the announcement board of the Electronic Headquarters of the Ayuntamiento taken on February 5, 2023, at 10:09, in which the aforementioned Resolution of the Mayor is displayed.

Furthermore, the file contains a certificate from the company "esPublico Gestiona" dated February 6, 2023, stating:

"CERTIFICATE OF PUBLICATION IN THE ANNOUNCEMENT BOARD

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FIRST. That the entity Ayuntamiento Benavides has an electronic headquarters enabled with the platform "esPublico Gestiona" accessible via the internet at the address

<https://aytobenavides.sedelectronica.es>, and that it has a space for the Announcement Board.

SECOND. That according to the information in our computer systems, on 05/02/2023 the following document was published on the announcement board:

Document: Resolution of the Mayor approving the provisional list of admitted candidates to the selection process - Expte. No.

***EXPEDIENTE.1

CSV: ***CSV.1

MD5 fingerprint: ***REFERENCIA.1

SHA1 fingerprint: ***REFERENCIA.2

THIRD. That said document has been published for 0 days, and ceased to be so on 06/02/2023." (the underlining is ours).

SECOND: The summoned party published in the announcement board of its Electronic Headquarters the Resolution of the Mayor dated February 6, 2023, by which the provisional list of admitted and excluded candidates in all stabilization processes of the Ayuntamiento de Benavides is approved.

In said Resolution, the full National Identity Document of three candidates appeared along with their names and surnames; furthermore, in the case of two other candidates, more than four digits of the DNI were published along with their names and surnames.

The complainant has submitted along with their complaint said resolution, as well as a screenshot of the announcement board of the Electronic Headquarters of the Ayuntamiento taken on February 6, 2023, at 16:44, in which the aforementioned Resolution of the Mayor is displayed.

On the other hand, the Ayuntamiento de Benavides acknowledges said publication:

In the report from the Ayuntamiento de Benavides dated April 3, 2023, prepared in response to the transfer and request for information from the AEPD, it acknowledges having published the full DNI of two candidates for the temporary employment consolidation processes of said Consistory:

"(...)

Focusing on the file ***EXPEDIENTE.2 of "...", although it is true that the first resolution of the Mayor by which the provisional list of admitted and excluded candidates in all stabilization processes is approved, was published without observing the LO3/18, as the full national identity document of the candidates for the tests is included (...)" (the underlining is ours).

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THIRD: The processing of personal data of the candidates for the temporary employment consolidation processes of the Benavides City Council, the personnel subject to the claim, would not have been accompanied by appropriate security measures. In relation to this issue, the report from

***POSITION.1 dated April 3, 2023, highlights:

“6.- Security Measures for the processing of personal data adopted prior to the incident, as well as the supporting documentation of the Risk Analysis that led to the implementation of such Security Measures and, if applicable, a copy of the Impact Assessments of the processing where the security breach of personal data occurred.

Efforts are always made to adopt the appropriate measures for the processing of personal data, but we all make mistakes, (...).”

FOURTH: The Benavides City Council acknowledges that it has not appointed a Data Protection Officer.

In the report dated April 3, 2023, prepared by ***POSITION.1 of the Benavides City Council, in response to the transfer of the claim and request for information by the AEPD, it is indicated:

“In 2020, the Hon. Provincial Council of León communicated to this City Council the resolution appointing the person designated as the Data Protection Officer in this City Council. The provincial body communicated in November 2022 the resignation of the holder of that position.

Since then, this City Council continues without the figure of the Data Protection Officer, although we know that by provision of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights, hereinafter LO3/18, the City Council is responsible or in charge of the processing.” (the underlining is ours).

Furthermore, in the letter dated May 10, 2023, signed by the Mayor of the Benavides City Council, prepared in response to a request for information from the AEPD dated May 9, 2023, it is highlighted:

“Having received a letter dated 10.05.2023, in which that Agency is interested in the appointment of the Data Protection Officer in the Benavides City Council.

Through this letter, it is INFORMED that this City Council has not appointed any Delegate.

Such tasks escape us, due to the small number of municipal public employees and the excessive breadth of municipal tasks.” (the underlining is ours).

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Finally, in the letter of allegations to the initiation agreement dated January 30, 2024, it is indicated:

“In 2022, the Hon. Provincial Council of León communicated to this City Council the resignation of the person appointed as the Data Protection Officer of this City Council. Since then, this City Council continues without a Data Protection Officer. According to Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights, hereinafter LO3/18, the City Council is responsible or in charge of the processing.” (the underlining is ours).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Allegations to the initiation agreement

In its letter of allegations to the initiation agreement of January 30, 2024, the Benavides City Council indicates, in summary, the following:

Since 2022 (the date on which the DPO of the City Council resigned), the Benavides City Council has not had a DPO.

The City Council highlights the scarcity of human, material, and technical resources, with the consequent difficulty in assuming the responsibilities of managing the processing of personal data.

***POSITION.2 of the City Council endorses the report previously prepared by its predecessor. It also indicates that it will propose to the Mayor that a request be made to the Hon. Provincial Council of León for the appointment of a DPO.

In response to the allegations presented by the Benavides City Council in its letter of January 30, 2024, it is noted that paragraphs 1 and 7 of Article 37 of the GDPR state the following:

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“1. The data controller and the data processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;

(...)

7. The data controller or the data processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.”

Furthermore, in sections 3, 5, and 6 of Article 37 of the GDPR, it is provided:

“3. When the data controller or the data processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

(...)

5. The data protection officer shall be appointed based on their professional qualities and, in particular, their specialized knowledge of law and practice in data protection and their ability to perform the functions specified in Article 39.

6. The data protection officer may be part of the staff of the data controller or the data processor or perform their functions within the framework of a service contract.”

In relation to this matter, Article 34 of the LOPDGDD (Designation of a data protection officer) states:

“1. Data controllers and data processors must designate a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 (...)

3. Data controllers and data processors shall communicate within ten days to the Spanish Data Protection Agency or, where applicable, to the regional data protection authorities, the designations, appointments, and terminations of data protection officers both in cases where they are obliged to designate one and in cases where it is voluntary.”

Therefore, the legal obligation exists, and the City Council of Benavides must comply with it.

The Data Protection Officer (DPO) is a qualified advisor in matters of personal data protection. The City Council, in its capacity as data controller or, where applicable, data processor, needs to have the advice of the DPO.

III

Preliminary Issues

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The City Council of Benavides, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data - GDPR - and with Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of

Digital Rights - LOPDGDD - concerning the processing of personal data they carry out, understanding personal data as “any information relating to an identified or identifiable natural person.”

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Furthermore, processing must be understood as “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction.”

The first section of the seventh additional provision of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), titled “Identification of the interested parties in notifications by means of announcements and publications of administrative acts” provides as follows:

“1. When it is necessary to publish an administrative act containing personal data of the affected party, the affected party shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated.

When it comes to notification by means of announcements, particularly in the cases referred to in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the affected party shall be identified exclusively by the complete number of their national identity document, foreign identity number, passport, or equivalent document.

When the affected party does not have any of the documents mentioned in the two preceding paragraphs, the affected party shall be identified solely by their name and surname. In no case should the name and surname be published together with the complete number of the national identity document, foreign identity number, passport, or equivalent document (...).”

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Considering the above, the Benavides City Council would have processed the personal data of the candidates for the consolidation of temporary employment in the aforementioned City Council, specifically, the first name, two surnames, and the National Identity Document (DNI).

The City Council carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR:

“‘data controller’ or ‘controller’: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States.”

Article 4(12) of the GDPR broadly defines “personal data breaches” (hereinafter security breach or personal data breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed.”

In this case, there is a personal data breach under the circumstances mentioned above, categorized as a confidentiality breach that affected the confidentiality of personal data of several candidates for the consolidation of temporary employment in the aforementioned City Council, as the complete DNI was published without redaction, along with the first name and surnames of several candidates.

According to the GT29, a “Confidentiality Breach” occurs when there is an unauthorized or accidental disclosure of personal data, or access to such data.

It should be noted that the identification of a security breach does not directly imply the imposition of a

sanction by this Agency, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied.

IV

Violation of Article 5.1(f) of the GDPR

Article 5.1(f) of the GDPR, Principles relating to processing, states the following:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures (‘integrity and confidentiality’).”

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In the case examined in this sanctioning file, the complainant states that on February 5, 2023, the Resolution of the Mayor approving the provisional list of admitted candidates to the selection process - Expte. No. ***EXPEDIENTE.1 was published on the Electronic Headquarters of the Benavides City Council, which included the complete DNI of the candidates without redaction.

This Resolution was withdrawn on February 6, 2023. However, on that date (February 6, 2023), the Resolution of the Municipal Mayor dated 06.02.2023 was published on the Electronic Headquarters of the Benavides City Council, which provisionally approves the provisional lists of admitted and excluded candidates in the consolidation processes of temporary employment of the Benavides City Council (León), in which the complete DNI without redaction of several candidates was published again.

The complainant has submitted both Resolutions of the Mayor along with their complaint, as well as two screenshots of the Announcement Board of the Electronic Headquarters of the City Council dated February 5 and 6, 2023.

The examination of the Resolution of the Mayor approving the provisional list of admitted candidates to the selection process - Expte. No. ***EXPEDIENTE.1, published on February 5, 2023, shows that the names and surnames of the two candidates were published, along with the complete DNI of both.

On the other hand, the Resolution of the Municipal Mayor dated 06.02.2023, which provisionally approves the provisional lists of admitted and excluded candidates in the consolidation processes of temporary employment of the Benavides City Council (León), was not prepared in compliance with the provisions of the first section of the seventh additional provision of the LOPDGDD, highlighting three cases (including the complainant) in which the complete DNI was published along with the names and surnames of the candidates and other cases in which more than four digits of the DNI of other candidates were published.

In the report from the Benavides City Council dated April 3, 2023, prepared in response to the transfer and request for information from the AEPD, it acknowledges having published the complete DNI of two candidates for the consolidation of temporary employment processes of that Council:

“(…)

Focusing on file ***EXPEDIENTE.2 of ‘(...)’, although it is true that the first resolution of the Mayor approving the provisional list of admitted and excluded candidates in all stabilization processes was published without observing the LO3/18, as the national identity document of the candidates for the tests is fully dated, it should be mentioned that this publicity was maintained, according to the system certificate, for zero (0) days, that is, for less than 24 hours. However, once aware of (...) such irregularity, it proceeded immediately to its cancellation – See attached certificate.

(...)

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3.- Number of individuals affected by the personal data security breach. In the case that gives rise to the claim presented, the number of affected citizens has been two (2).

4.- Category of the personal data involved. The affected personal data refers exclusively to the ID number (DNI).

(...)

In the present case, the personal data breach must be classified as a confidentiality breach, given that as a consequence of it, the ID numbers of candidates for the temporary employment consolidation processes of the Benavides City Council would have been improperly exposed to third parties, violating the principle of confidentiality. This circumstance constitutes a violation of the provisions of Article 5.1.f) of the GDPR.

V

Qualification and classification of the infringement of Article 5.1 f) of the GDPR

The aforementioned infringement of Article 5.1 f) of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Sanction for the infringement of Article 5.1 f) of the GDPR

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Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 states:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Furthermore, Article 77 "Applicable regime for certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration (...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution

declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected individuals who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that apply.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

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5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in paragraph 1 of this article, with express indication of the identity of the data controller or processor who committed the infringement.

(...)

In light of the facts presented, it is considered appropriate to impose a sanction on the party being claimed for the violation of Article 5.1 f) of the GDPR, as typified in Article 83.5 of the GDPR. The sanction to be imposed is the declaration of infringement.

VII

Infringement of Article 32 of the GDPR

Article 32 of the GDPR establishes the following regarding the security of processing:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data (The emphasis is ours).

(...)

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

For its part, Recital 74 of the GDPR states the following:

“The responsibility of the controller for any processing of personal data carried out by them or on their behalf should be established. In particular, the controller should be obliged to implement appropriate and effective measures and should be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures should take into account the nature, scope, context, and purposes of the processing as well as the risk to the rights and freedoms of natural persons.”

In this regard, Recital 75 of the GDPR lists a series of factors or situations associated with risks to the rights and freedoms of data subjects: (the emphasis is ours)

“The risks to the rights and freedoms of natural persons, of varying severity and probability, may arise from the processing of data that could cause physical, material, or immaterial harm, in particular in cases where the processing could lead to discrimination, identity theft or fraud, financial loss, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social disadvantage; in cases where data subjects are deprived of their rights and freedoms or prevented from exercising control over their personal data; in cases where the personal data processed reveal racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, and the processing of genetic data, data concerning health, or data concerning a person's sex life, or criminal convictions and related security measures; in cases where personal aspects are evaluated, in particular the analysis or prediction of aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, situation or movements, for the purpose of creating or using personal profiles; in cases where personal data of vulnerable individuals, in particular children, are processed; or in cases where the processing involves a large amount of personal data and affects a large number of data subjects.”

Article 32 of the GDPR does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of varying likelihood and severity for the rights and freedoms of the data subjects.

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In any case, when assessing the adequacy of the level of security, particular attention will be paid to the risks presented by data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

In the case analyzed in this file, the processing of personal data of candidates for the temporary employment consolidation processes of the Benavides City Council would not have been accompanied by appropriate security measures.

Regarding security measures, the report from ***POSITION.1 dated April 3, 2023, highlights:

“6.- Security Measures for the processing of personal data adopted prior to the incident, as well as the supporting documentation of the Risk Analysis that has led to the implementation of such Security Measures and, where applicable, a copy of the Impact Assessments of the processing where the security breach of personal data has occurred.

Efforts are always made to adopt appropriate measures for the processing of personal data, but we all make mistakes, (...).”

Consequently, it has not been demonstrated that the Benavides City Council has conducted a risk

analysis regarding the publication of personal data of candidates for public employment processes called by said City Council.

There is also no record of an internal procedure approved by the Benavides City Council that provides for the manner of publishing the personal data of candidates for public employment processes called by said City Council, respecting the provisions of the seventh additional provision of the LOPDGDD. It is considered that the known facts constitute an infringement, attributable to the City Council, for violation of Article 32 of the GDPR.

VIII

Typification and qualification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes one of the infringements typified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)”

IX

Sanction for the infringement of Article 32 of the GDPR

This Agency refers to the content of Article 83 “General conditions for the imposition of administrative fines” of the GDPR paragraph 7 and to the content of Article 77 of the LOPDGDD “Regime applicable to certain categories of controllers or processors,” reproduced in the legal basis VI of this resolution “Sanction for the infringement of Article 5.1 f) of the GDPR.”

In light of the facts presented, it is considered appropriate to impose a sanction on the claimed party for the violation of Article 32 of the GDPR, typified in Article 83.4 of the GDPR. The sanction to be imposed is the declaration of infringement.

X

Infringement of Article 37 of the GDPR

Public Administrations act as controllers of personal data and, at times, perform functions of processors as appropriate, following the principle of proactive responsibility, to fulfill the obligations detailed by the GDPR, including the appointment of a data protection officer, making their contact details public, and communicating this to the AEPD.

Paragraphs 1 and 7 of Article 37 of the GDPR refer to these obligations and establish, respectively:

“1. The controller and the processor shall designate a data protection officer whenever:

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a) the processing is carried out by a public authority or body, except for courts acting in the exercise of their judicial function;

(...)

7. The controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.”

Regarding the appointment of the data protection officer, paragraphs 3 and 5 of Article 37 of the GDPR state that:

“3. When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

(...)

5. The data protection officer shall be appointed based on their professional qualities and, in particular, their specialized knowledge of law and practice in the field of data protection and their ability to perform the tasks specified in Article 39.

6. The data protection officer may be part of the staff of the controller or the processor or perform their functions under a service contract.”

On its part, the LOPDGDD dedicates Article 34 to the “Appointment of a data protection officer,” which provides:

“1. Controllers and processors must appoint a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 (...)

3. Controllers and processors shall communicate within ten days to the Spanish Data Protection Agency or, where applicable, to the regional data protection authorities, the appointments, designations, and terminations of data protection officers both in cases where they are obliged to appoint one and in cases where it is voluntary.”

In the report dated April 3, 2023, prepared by ***POSITION.1 of the Benavides City Council, in response to the transfer of the complaint and request for information, it is indicated:

“In 2020, the Excellency Provincial Council of León communicated to this City Council the resolution appointing the person designated as the data protection officer in this City Council. The provincial body communicated in November 2022 the resignation of the holder of that position.

Since then, this City Council has been without a data protection officer, although we know that by provision of Organic Law C/ Jorge Juan, 6

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3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, hereinafter LO3/18, the City Council is the controller or processor of the processing.” (the underlining is ours).

Furthermore, in the letter dated May 10, 2023, signed by the Mayor of the Benavides City Council, prepared in response to a request for information from the AEPD dated May 9, 2023, it is highlighted:

“That having received a letter dated 10.05.2023, by which that Agency is interested in the appointment of the Data Protection Officer in the Benavides City Council.

Through this letter, it is INFORMED that this City Council has not appointed any Delegate.

Such tasks escape us, due to the small number of municipal public employees, and the excessively broad scope of municipal tasks.” (the underlining is ours).

Finally, in the written allegations to the initiation agreement dated January 30, 2024, it is indicated:

“In 2022, the Excellency Provincial Council of León communicated to this City Council the resignation of the person appointed as the data protection officer of this City Council. Since then, this City Council has been without a data protection officer. Law 3/2018, December 5, on Personal Data Protection and Guarantee of Digital Rights, hereinafter LO3/18, states that the City Council is the controller or processor of the processing.” (the underlining is ours).

Consequently, the Benavides City Council does not have a designated Data Protection Officer, despite being the controller or processor of the processing.

As indicated, the GDPR provides that the controller and processor must appoint a DPO in the case that “the processing is carried out by a public authority or body,” as well as “publish the contact details of the data protection officer and communicate them to the supervisory authority.”

The known facts constitute an infringement, attributable to the Benavides City Council for violation of Article 37 of the GDPR, "Appointment of the data protection officer."

XI

Classification and qualification of the infringement

The aforementioned infringement of Article 37 of the GDPR constitutes one of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

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"The violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the data controller and the data processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Violations" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute violations."

For the purposes of the statute of limitations, Article 73 "Violations considered serious" of the LOPDGDD indicates:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and shall be subject to a two-year statute of limitations:

v) The failure to appoint a data protection officer when the appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this organic law."

XII

Sanction for the violation of Article 37 of the GDPR

This Agency refers to the content of Article 83 "General conditions for the imposition of administrative fines" of the GDPR paragraph 7 and the content of Article 77 of the LOPDGDD "Regime applicable to certain categories of controllers or processors," reproduced in the legal basis VI of this resolution "Sanction for the violation of Article 5.1 f) of the GDPR."

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 37 of the GDPR, classified in Article 83.4 of the GDPR. The sanction to be imposed is the declaration of violation.

XIII

Adoption of measures

Having confirmed the violations, it is appropriate to impose on the controller the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame."

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It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its Articles 83.5 and 83.6, which may lead to the initiation of

further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DECLARE that AYUNTAMIENTO DE BENAVIDES, with NIF P2401600H, has violated the provisions of

- Article 5.1.f) of the GDPR, classified in Article 83.5.a), and qualified as very serious for the purposes of the statute of limitations in Article 72.1 a) of the LOPDGDD.
- Article 32 of the GDPR, classified in Article 83.4 a), and qualified as serious for the purposes of the statute of limitations in Article 73 f) of the LOPDGDD.
- Article 37 of the GDPR, classified in Article 83.4 a), and qualified as serious for the purposes of the statute of limitations in Article 73 v) of the LOPDGDD.

SECOND: TO ORDER AYUNTAMIENTO DE BENAVIDES, with NIF P2401600H, that pursuant to Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to demonstrate compliance with the following measures:

1. Appointment of a Data Protection Officer and communication of that appointment to the AEPD.
2. Establish the necessary measures to ensure that the publication of personal data of candidates for public employment processes convened by said Ayuntamiento complies with the provisions of the seventh additional provision of the LOPDGDD.

THIRD: TO NOTIFY this resolution to AYUNTAMIENTO DE BENAVIDES.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly

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Contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024
Mar España Martí
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